Sufi Muhammad led the campaign for enforcement of *Sharia* in 1994, and later his 32-year-old son-in-law Maulana Fazlullah took command. He had been operating in a more brutal and aggressive manner. His group of militants had been trying to implement its uncouth brand of *Sharia*.

Swat was a serene and safe place where justice was neither delayed nor did it require a lot of money. The political system provided an effective justice system based on *Sharia* (Islamic way of life) and *Rewaj (traditions/ customs)*. Nevertheless, it should not be taken, as is commonly believed, that Shariat was the Supreme Law and that all the people were bound to follow and decide their cases accordingly in the Qazi courts. The Qazi courts were subservient to the administrative cum judicial officers and Islamic laws to the regional 'Codes of Conduct', and both were subordinate to the orders of the rulers. There were fines for all kinds of offences, for instance, murders, thefts and adultery. Strict Islamic rules and laws were seldom followed.

Swat had a fairly developed socio-political and administrative set-up at the time of independence. Its cultural values were entrenched in Islamic traditions coupled with a unique sense of individual existence. After merger of Swat with West Pakistan in 1969, the Frontier Crimes Regulation (FCR) was enforced in the Malakand division comprising the former princely states of Swat, Dir, Chitral and the Malakand Protected Area. Later, the PATA (Provincially Administered Tribal Area) regulations were introduced in 1975, and at the same time, certain laws of the settled areas were extended. It may be noted that the status of PATA was in accordance with that of these areas by virtue of Article 246 (b) of the Constitution of Pakistan 1973. Similarly, Article 247(3) (4) and (5) of the Constitution of Pakistan provides for special procedures for extension of laws to FATA/PATA. The PATA Regulation I and II of 1975 and the Regulation IV of 1976 created a parallel judicial system. In this way, certain matters were decided by Sessions & Civil courts, while others remained in the jurisdiction of *Jirgas.*

The judicial system was divided into two parts under the PATA regulations. The offences falling under Part I were exclusively dealt with by tribal *Jirga* to be constituted by the then Deputy Commissioner. These *Jirgas* were given exclusive jurisdiction in respect of all offences except offences against the state, relating to the armed forces, elections and so on. The *Jirga* could adjudicate on all disputes of criminal nature. A Naib